



SPONSOR: Rep. Ortega & Sen. Huxtable

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 229

AN ACT TO AMEND TITLE 25 OF THE DELAWARE CODE RELATING TO SUMMARY POSSESSION.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

- 1 Section 1. Amend § 5705, Title 25 of the Delaware Code by making deletions as shown by strike through and
2 insertions as shown by underline as follows:
- 3 § 5705. Service and filing of notice.
- 4 (a) The notice of hearing and the complaint shall be served at least 5 days and not more than ~~30~~90 days before the
5 time at which the complaint is to be heard.

SYNOPSIS

This Act increases the notice period during which notice of a hearing and complaint must be served in an action for summary possession from between 5 and 30 days to between 5 and 90 days prior to the time at which the complaint is to be heard.